

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

UNITED STATES OF AMERICA,	)	
	)	
Plaintiff,	)	Civil Action No: 2:19-cv-7059
	)	
v.	)	Judge
	)	
PHILLIP VECCHIONE,	)	Magistrate Judge
DEANNA HARDING,	)	
CAPITAL ONE BANK (USA) N.A.,	)	
STATE OF NEW YORK, and	)	
COUNTY OF SUFFOLK, NEW YORK,	)	
	)	
Defendants.	)	

COMPLAINT

The United States of America, at the direction of a delegate of the Attorney General and with the authorization of a delegate of the Secretary of the Treasury, pursuant to 26 U.S.C. §§ 7401, 7402(a), and 7403(c), brings this civil action to enforce federal tax liens against certain real property. For its complaint, the United States alleges as follows:

JURISDICTION, PARTIES, AND PROPERTY

1. The district court has jurisdiction pursuant to 26 U.S.C. §§ 7401, 7402(a) and 7403, and 28 U.S.C. §§ 1331, 1340, and 1345.
2. Defendant Phillip Vecchione resides at 5 Girard Avenue, Bay Shore, New York 11706 in Suffolk County, New York, within the jurisdiction of this Court. His father died intestate on December 25, 2016, and he also was named Phillip Vecchione. To distinguish them herein, the father shall be referred to as “the now deceased Mr. Vecchione.” Phillip Vecchione is named because he may claim an interest in the property described below.
3. Defendant Deanna Harding resides at 26 Mida Court, West Babylon, New York 11729 in Suffolk County, New York, within the jurisdiction of this Court. The now deceased

Mr. Vecchione was also her father. She is named because she may claim an interest in the property described below.

4. Defendant Capital One Bank (USA) N.A is joined as a party because it may have a lien or claim an interest in the property described below.

5. Defendant State of New York is named because it may have a lien or claim an interest in the property described below.

6. Defendant County of Suffolk, New York is joined as a party because, as the local taxing authority, it may have a lien or claim an interest in the property described below and to place it on notice (a) of this Court's jurisdiction over the property, (b) that any local tax liens that have priority over federal tax liens under 26 U.S.C. § 6323(b)(6) will be satisfied in a judicial sale under this Court's authority, and (c) that the property may not be sold under other procedures during the pendency of this action.

7. The real property upon which the United States seeks to enforce its tax liens is located at 26 Mida Court, West Babylon, New York 11729 (the "Real Property"), within the jurisdiction of this Court, known by district, section, lot and block as District 0100, Section 139.00, Block 02.00, and Lot 063.000, and by the legal description as follows:

ALL that certain plot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in that Town of Babylon, County of Suffolk, State of New York, known and designated on a certain map entitled "Map of Frederick Farms, Suffolk County, New York, developed by Cadman E. Frederick, surveyed July 23, 1934, by George H. Walbridge Company, Civil Engineers and Surveyors, Babylon, New York" and filed in the Suffolk County Clerk's Office as Map 01172 on September 4, 1934 and by Plots Nos. 668 and 669.

8. The most recent deed recorded for the above-described property is recorded at Liber 11707 Page 746 in the real property records of Suffolk County, New York. See Government Exhibit 1, a true and correct copy of a deed by which the now deceased Mr.

Vecchione obtained title to the property.

COUNT ONE

(Claim Against All Parties to Enforce Federal Tax Liens Against Real Property)

9. The United States incorporates by reference paragraphs 1 through 8 as if specifically realleged herein.

10. The now deceased Mr. Vecchione obtained title to the Real Property by deed dated November 23, 1994, and recorded on December 22, 1994. *See* Government Exhibit 1.

11. A delegate of the Secretary of the Treasury made assessments against the now deceased Mr. Vecchione for income taxes for the periods, on the dates, and in the amounts (not including penalties or interest) described below:

<u>Year</u>	<u>Tax</u>	<u>Date of Assessment</u>	<u>Amount of Assessment</u>
2002	Tax	5/19/2003	\$ 10,541.00
2005	Tax	2/4/2008	\$ 7,062.00
2006	Tax	6/2/2008	\$ 6,092.00
2007	Tax	12/1/2008	\$ 9,686.00
2008	Tax	5/11/2009	\$17,607.00
2009	Tax	5/24/2010	\$20,171.00
2010	Tax	5/30/2011	\$21,039.00
2011	Tax	5/28/2012	\$17,350.00

See Government Exhibit 2, true and correct copies of IRS Account Transcripts for Phillip Vecchione for the years set forth above.¹

¹ Pursuant to Rule 5.2, Fed.R.Civ.P., social security numbers have been redacted from the transcripts.

12. On the dates of the assessments set forth above, federal tax liens for those assessments arose and attached to the now deceased Mr. Vecchione's interest in the Real Property by operation of 26 U.S.C. §§ 6321 and 6322.

13. On September 17, 2013, the United States District Court for the Eastern District of New York entered a judgment in favor of the United States and against the now deceased Mr. Vecchione, reducing the assessments to judgment together with interest and penalties. *See* Doc. 12 in *United States v. Phillip Vecchione*, Case No. 2:13-cv-02579. The judgment was entered against the now deceased Mr. Vecchione for unpaid income taxes, penalties, and interest for the years 2002, 2005, 2006, 2007, 2008, 2009, 2010, and 2011 in the total amount of \$158,206.01, plus statutory additions accruing after September 13, 2013, including, but not limited to, interest pursuant to 26 U.S.C. §§ 6601, 6621, 6622, and 28 U.S.C. § 1961(c), until fully paid. *Id.*

14. On August 27, 2019, an abstract of the judgment for taxes entered in the United States District Court for the Eastern District of New York was recorded in Suffolk County. *See* Government Exhibit 3, a true and correct copy of the abstract of judgment.

15. After the judgment for taxes was entered, the United States collected eighteen payments on the judgment. Each payment was in the amount of \$100.²

16. As of October 7, 2019, the total liability for the now deceased Mr. Vecchione for income taxes for 2002 and 2005 through 2011, including assessed and accrued penalties and interest, is \$197,955.83. That figure is the total of the liabilities of the now deceased Mr. Vecchione for income taxes for 2002 and 2005 through 2011 in the respective amounts of

² The IRS applied ten of the payments to the now deceased Mr. Vecchione's 2002 liability. The IRS mistakenly applied eight of the payments to his 2012 liability, which was not at issue in *United States v. Phillip Vecchione*, Case No. 2:13-cv-02579. The IRS is in the process of reapplying the eight payments to his 2002 liability. The reduction that will result in the 2002 liability will be too small to be material to this complaint.

\$23,662.72 + \$10,063.93 + \$15,145.72 + 21,410.20 + \$32,174.24 + \$34,287.32 + \$33,312.88 + \$27,898.82 = \$197,955.83. See Government Exhibit 2, true and correct copies of IRS Account transcripts, which reflect “Account Balance Plus Accruals” figures on the first page of each transcript for each of the tax years.

17. Notices of Federal Tax Lien (“NFTL”) were recorded with the County Recorder of Suffolk County, New York in accordance with 26 U.S.C. § 6323(f) as follows:

Type of Tax	Tax Periods Ending	Date NFTL Filed
Income	2002	9/24/2003
Income	2005-2010	2/21/2012
Income	2011	9/27/2012
Income	2002 (refiling)	2/26/2013
Income	2005 (refiling)	5/31/2017
Income	2006 (refiling)	8/30/2017
Income	2007-2008 (Revocation of Release of Federal Tax Lien, revoking self-release of notice of lien for these years that occurred when they were not refiled)	7/30/2019
Income	2007-2008 (refiling)	7/31/2019

See Government Exhibit 4, true and correct copies of recorded notices of federal tax liens, revocations, and refilings of notices of federal tax liens.

18. When the now deceased Phillip Vecchione died on December 25, 2016, the residential real property at 26 Mida Court, West Babylon, New York 11729 passed by the laws of intestacy to his adult children, Phillip Vecchione and Deanna Harding, subject to the federal tax liens. Upon information and belief, the now deceased Mr. Vecchione had no other children and no surviving spouse.

19. The United States is entitled to enforce the federal tax liens described in the

preceding paragraph against the Real Property pursuant to 26 U.S.C. § 7403 and to have the entire Real Property sold in a judicial sale (including by a receiver if requested by the United States), free and clear of all claims, liens, or interests of the parties, including any rights of redemption, with the proceeds of the sale distributed: first, to pay the costs of sale, including any expenses incurred to secure and maintain the Real Property, and pro rata utility expenses; second, to Suffolk County, New York, to pay any real estate taxes due and owing which are entitled to priority under 26 U.S.C. § 6323(b)(6); third, to the United States to pay the liabilities described above, except to the extent that the Court determines that another party has a superior right, title, or interest.

WHEREFORE, the plaintiff United States of America requests the following relief:

A. A determination that the United States has valid and subsisting federal tax liens under 26 U.S.C. §§ 6321 and 6322 securing the income tax liabilities of the now deceased Mr. Vecchione for 2002 and for 2005 through 2011 on the Real Property;

B. An order enforcing the federal tax liens securing the liabilities described above pursuant to 26 U.S.C. § 7403 against the Real Property by ordering the sale of the entire Real Property in a judicial sale (including by a receiver if requested by the United States), free and clear of all rights, titles, or interests of the parties, including any rights of redemption, with the proceeds of the sale distributed: first, to pay the costs of sale, including any expenses incurred to secure and maintain the Real Property, and pro rata utility expenses; second, to Suffolk County, New York, to pay any real estate taxes due and owing which are entitled to priority under 26 U.S.C. § 6323(b)(6); third, to the United States to pay the liabilities described above, except to the extent that the Court determines that another party has a superior right, title, or interest; and,

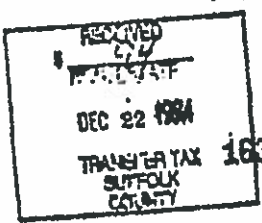
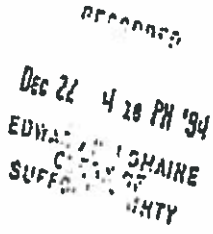
C. An order granting the United States of America its costs, as well as such other and

further relief as the Court determines is just and proper, from the net proceeds of sale.

RICHARD E. ZUCKERMAN
Principal Deputy Assistant Attorney General
Tax Division, U.S. Department of Justice

/s/ Alan Shapiro
ALAN SHAPIRO
Trial Attorney, Tax Division
U.S. Department of Justice
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Tel: 202-307-5839
Fax: 202-514-5238
e-Mail: Alan.M.Shapiro@usdoj.gov

BOXES 1 THRU 9 MUST BE TYPED OR PRINTED IN BLACK INK ONLY PRIOR TO RECORDING OR FILING.

1 SUFFOLK COUNTY CLERK		2	16302	3	
L/P# 117076746					
Number of pages 3					
Serial # _____					
Certificate # _____					
Prior City _____					
Deed / Mortgage Instrument		Deed / Mortgage Tax Stamp		Recording / Filing Stamp	
4 FEES					
Page / Filing Fee <u>9.</u>				Mortgage Amt. _____	
Handling <u>5.</u>				1. Basic Tax _____	
TP-SM <u>6.</u>				2. SONYMA _____	
Notation _____				Sub Total _____	
EA-5217 (County) <u>5.</u>		Sub Total <u>05.</u>		3. Spec/Adj. _____	
EA-5217 (State) <u>20.</u>				TOT. MTG. TAX _____	
R.P.T.S.A. <u>15.</u>				Dual Town _____ Dual County _____	
Comm. of Ed. _____				Held for Apportionment _____	
Affidavit _____				Transfer Tax <u>94.</u>	
Certified Copy _____				Mansion Tax _____	
Reg. Copy _____		Sub Total <u>45.</u>		The property covered by this mortgage is or will be improved by a water or family dwelling only.	
Other _____		GRAND TOTAL <u>70.</u>		YES _____ or NO _____	
				If NO, see appropriate tax clause on page _____ of this instrument.	
5 Real Property Tax Service Agency Verification					
	Dist	Section	Block	Lot	
	1100	137.00	02.00	063.000	
6 Title Company Information					
REALTY TRUSTS, INC.					
254 NASSAU BLVD					
GARDEN CITY SO., NY 11530					
66689.5					



7

FEE PAID BY:

Cash ☐ Check ☒ Charge ☐Payer same as R & R ☐

OR:

REALTY REPORTS, INC.

254 NASSAU BLVD.

GARDEN CITY SQ., NY 11530

800-521-2141

Mr. P. Vecchione
210 Mida Court
W. Babylon, NY 11704

8

RECORD & RETURN TO
(ADDRESS)

9

Suffolk County Recording & Endorsement PageThis page forms part of the attached Deed made by:
(Deed, Mortgage, etc.)

Vincent Menna and
Rose Menna, UN
TO

Phillip M. Vecchione

The premises herein is situated in
SUFFOLK COUNTY, NEW YORK.In the TOWN of BabylonIn the VILLAGE
or HAMLET of _____

13-0104 6/91

666895

CONSULT YOUR LAWYER BEFORE SIGNING THIS INSTRUMENT—THIS INSTRUMENT SHOULD BE USED BY LAWYERS ONLY.

THIS INDENTURE, made the 23rd day of November, nineteen hundred and ninety-four
 BETWEEN VINCENT MENNA and ROSE MENNA, his wife, both residing at 43 Withers
 Street, Brooklyn, NY

party of the first part, and

PHILLIP M. VECCHIONE, residing at 26 Mida Court, West Babylon, NY

party of the second part,

WITNESSETH, that the party of the first part, in consideration of Ten Dollars and other valuable consideration paid by the party of the second part, does hereby grant and release unto the party of the second part, the heirs or successors and assigns of the party of the second part forever,

ALL that certain plot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Town of Babylon, County of Suffolk, State of New York, known as their interest in, and designated on a certain map entitled "Map of Frederick Farms, Suffolk County, New York, developed by Cadman E. Frederick, surveyed July 23, 1934, by George H. Walbridge Company, Civil Engineers and Surveyors, Babylon, New York" and filed in the Suffolk County Clerk's Office as Map 01172 on September 4, 1934 and by Plots Nos. 668 and 669.

Dist 0100
 Sec 139.00
 Block 02.00
 Lot 063.000

Premises— 26 Mida Ct, West Babylon, NY.

TOGETHER with all right, title and interest, if any, of the party of the first part in and to any streets and roads abutting the above described premises to the center lines thereof; TOGETHER with the appurtenances and all the estate and rights of the party of the first part in and to said premises; TO HAVE AND TO HOLD the premises herein granted unto the party of the second part, the heirs or successors and assigns of the party of the second part forever.

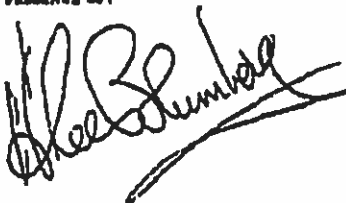
AND the party of the first part covenants that the party of the first part has not done or suffered anything whereby the said premises have been encumbered in any way whatever, except as aforesaid.

AND the party of the first part, in compliance with Section 13 of the Lien Law, covenants that the party of the first part will receive the consideration for this conveyance and will hold the right to receive such consideration as a trust fund to be applied first for the purpose of paying the cost of the improvement and will apply the same first to the payment of the cost of the improvement before using any part of the total of the same for any other purpose.

The word "party" shall be construed as if it read "parties" whenever the sense of this indenture so requires.

IN WITNESS WHEREOF, the party of the first part has duly executed this deed the day and year first above written.

IN PRESENCE OF:




 VINCENT MENNA


 ROSE MENNA

11767746

STATE OF NEW YORK, COUNTY OF Nassau 301

On the 23 day of November 19 94, before me personally came VINCENT MENNA and ROSE MENNA, his wife,

to me known to be the individuals described in and who executed the foregoing instrument, and acknowledged that they executed the same.

NOTARY

KATH O'HARE
NOTARY PUBLIC, State of New York
No. 30-01727/37604
Qualified in Nassau County
Commission Expires July 31, 19__

STATE OF NEW YORK, COUNTY OF 301

On the day of 19, before me personally came

to me known to be the individual described in and who executed the foregoing instrument, and acknowledged that executed the same.

STATE OF NEW YORK, COUNTY OF 301

On the day of 19, before me personally came to me known, who, being by me duly sworn, did depose and say that he resides at No.

that he is the of

the corporation described in and which executed the foregoing instrument; that he knows the seal of said corporation; that the seal affixed to said instrument is said corporate seal; that it was so affixed by order of the board of directors of said corporation, and that he signed his name thereto by like order.

STATE OF NEW YORK, COUNTY OF 301

On the day of 19, before me personally came the subscribing witness to the foregoing instrument, with whom I am personally acquainted, who, being by me duly sworn, did depose and say that he resides at No.

that he knows

to be the individual described in and who executed the foregoing instrument; that he, said subscribing witness, was present and saw execute the same; and that he, said witness, at the same time subscribed his name as witness thereto.

REALTY REPORTS, INC.
254 NASSAU BLVD.
GARDEN CITY SQ., NY 11530
800-521-2191

Margain and Sale Bond
WITH COVENANT AGAINST GRANULAR ACIS

TITLE No. 66689.5

MENNA and MENNA

TO
PHILLIP H. VECCHIONE

DIST. 0100
SECTION 139.00
BLOCK 02.00
LOT 063.000
COUNTY OR TOWN Suffolk

Recorded At Request of
First American Title Insurance Company of New York
RETURN BY MAIL TO

STANDARD FORM OF NEW YORK BOARD OF TITLE UNDERWRITING
Insured by
First American Title Insurance Company
of New York



Mr. P. Vecchione
26 Midda Ct.
W. Babylon NY 11704
Zip No.

THIS SPACE FOR USE OF RECORDING OFFICE



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
Response Date: 09-24-2019
Tracking Number: 100471826154

FORM NUMBER: 1040
TAX PERIOD: Dec. 31, 2002

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	11,115.17	
ACCRUED INTEREST:	12,547.55	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	0.00	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS
(this is not a payoff amount): 23,662.72

** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Head of Household
ADJUSTED GROSS INCOME:	43,599.00
TAXABLE INCOME:	26,386.00
TAX PER RETURN:	10,541.00
SE TAXABLE INCOME TAXPAYER:	46,304.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	7,085.00



RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER) Apr. 15, 2003
PROCESSING DATE May 19, 2003

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE	DATE	AMOUNT
150	Tax return filed	20031908	05-19-2003	\$10,541.00
n/a	19221-110-12043-3			
610	Payment with return		04-15-2003	-\$1,293.00
170	Penalty for not pre-paying tax 09-16-2033	20031908	05-19-2003	\$352.00
276	Penalty for late payment of tax	20031908	05-19-2003	\$92.48
196	Interest charged for late payment	20031908	05-19-2003	\$43.17

971	Tax period blocked from automated levy program	08-11-2003	\$0.00
582	Lien placed on assets due to balance owed	09-12-2003	\$0.00
360	Fees and other expenses for collection	10-06-2003	\$80.00
530	Balance due account currently not collectable	04-22-2004	\$0.00
537	Account currently considered collectable	10-10-2005	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	01-20-2006	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	01-31-2006	\$0.00
530	Balance due account currently not collectable	08-15-2006	\$0.00
276	Penalty for late payment of tax	20064608 11-27-2006	\$2,219.52
530	Balance due account currently not collectable	07-03-2012	\$0.00
537	Account currently considered collectable	10-08-2012	\$0.00
582	Lien placed on assets due to balance owed	02-22-2013	\$0.00
360	Fees and other expenses for collection	03-18-2013	\$80.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00
670	Payment	09-01-2015	-\$100.00
670	Payment Suit	10-09-2015	-\$100.00
670	Payment Suit	11-06-2015	-\$100.00
670	Payment Suit	12-29-2015	-\$100.00
670	Payment Suit	12-04-2015	-\$100.00
670	Payment Suit	09-30-2016	-\$100.00
670	Payment Suit	11-02-2016	-\$100.00
670	Payment Suit	12-05-2016	-\$100.00
670	Payment Suit	01-10-2017	-\$100.00
670	Payment Suit	03-07-2017	-\$100.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
Response Date: 09-24-2019
Tracking Number: 100471826154

FORM NUMBER: 1040
TAX PERIOD: Dec. 31, 2005

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	6,459.50	
ACCRUED INTEREST:	3,604.43	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	0.00	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS
(this is not a payoff amount): 10,063.93

** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Head of Household
ADJUSTED GROSS INCOME:	39,766.00
TAXABLE INCOME:	10,194.00
TAX PER RETURN:	7,062.00
SE TAXABLE INCOME TAXPAYER:	39,499.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	6,044.00

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Jan. 07, 2008
PROCESSING DATE	Feb. 04, 2008

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE	DATE	AMOUNT
150	Tax return filed	20080408	02-04-2008	\$7,062.00
n/a	08221-005-22625-8			
430	Estimated tax payment		04-15-2005	-\$1,650.00
430	Estimated tax payment		06-17-2005	-\$1,650.00
460	Extension of time to file tax return ext. Date 10-15-2006		04-15-2006	\$0.00
140	Inquiry for non-filing of tax return		04-17-2007	\$0.00
170	Penalty for not pre-paying tax	20080408	02-04-2008	\$86.00
	09-16-2033			

166	Penalty for filing tax return after the due date 09-16-2033	20080408 02-04-2008	\$846.45
276	Penalty for late payment of tax	20080408 02-04-2008	\$413.82
196	Interest charged for late payment	20080408 02-04-2008	\$664.55
971	Notice issued CP 0014	02-04-2008	\$0.00
530	Balance due account currently not collectable	05-14-2008	\$0.00
531	Account currently considered collectable	09-11-2008	\$0.00
971	Tax period blocked from automated levy program	02-15-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	03-04-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	03-09-2010	\$0.00
971	Notice issued CP 071C	11-08-2010	\$0.00
276	Penalty for late payment of tax	20104308 11-08-2010	\$526.68
971	Tax period blocked from automated levy program	08-22-2011	\$0.00
582	Lien placed on assets due to balance owed	02-17-2012	\$0.00
360	Fees and other expenses for collection	03-12-2012	\$80.00
971	Issued notice of lien filing and right to Collection Due Process hearing	02-21-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00
582	Lien placed on assets due to balance owed	05-19-2017	\$0.00
360	Fees and other expenses for collection	06-12-2017	\$80.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
Response Date: 09-24-2019
Tracking Number: 100471815617

FORM NUMBER: 1040
TAX PERIOD: Dec. 31, 2006

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC
26 MID

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	9,885.92	
ACCRUED INTEREST:	5,259.80	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	0.00	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS
(this is not a payoff amount): 15,145.72

** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Single
ADJUSTED GROSS INCOME:	36,030.00
TAXABLE INCOME:	6,151.00
TAX PER RETURN:	6,092.00
SE TAXABLE INCOME TAXPAYER:	35,776.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	5,474.00

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Apr. 17, 2008
PROCESSING DATE	Jun. 02, 2008

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE	DATE	AMOUNT
150	Tax return filed	20082108	06-02-2008	\$6,092.00
n/a	08221-119-48211-8			
766	Credit to your account		04-15-2007	-\$25.61
776	Interest credited to your account		04-15-2007	-\$4.39
170	Penalty for not pre-paying tax 09-16-2033	20082108	06-02-2008	\$288.00

166	Penalty for filing tax return after the due date 09-16-2033	20082108 06-02-2008	\$1,363.95
276	Penalty for late payment of tax	20082108 06-02-2008	\$424.34
196	Interest charged for late payment	20082108 06-02-2008	\$656.47
971	Notice issued CP 0014	06-02-2008	\$0.00
971	Tax period blocked from automated levy program	02-15-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	03-04-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	03-09-2010	\$0.00
971	Notice issued CP 071C	11-08-2010	\$0.00
276	Penalty for late payment of tax	20104308 11-08-2010	\$1,091.16
971	Tax period blocked from automated levy program	08-22-2011	\$0.00
582	Lien placed on assets due to balance owed	02-17-2012	\$0.00
971	Issued notice of lien filing and right to Collection Due Process hearing	02-21-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00
582	Lien placed on assets due to balance owed	08-18-2017	\$0.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
Response Date: 09-24-2019
Tracking Number: 100471815617

FORM NUMBER: 1040
TAX PERIOD: Dec. 31, 2007

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC
26 MID

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	14,388.72	
ACCRUED INTEREST:	7,021.48	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	0.00	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS
(this is not a payoff amount): 21,410.20

** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Single
ADJUSTED GROSS INCOME:	46,837.00
TAXABLE INCOME:	15,637.00
TAX PER RETURN:	9,686.00
SE TAXABLE INCOME TAXPAYER:	50,542.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	7,733.00

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Oct. 20, 2008
PROCESSING DATE	Dec. 01, 2008

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE DATE	AMOUNT
150	Tax return filed	20084708 12-01-2008	\$9,686.00
n/a	08221-307-29301-8		
170	Penalty for not pre-paying tax 09-16-2033	20084708 12-01-2008	\$308.00
166	Penalty for filing tax return after the due date 09-16-2033	20084708 12-01-2008	\$2,179.35
276	Penalty for late payment of tax	20084708 12-01-2008	\$387.44

196	Interest charged for late payment	20084708 12-01-2008	\$424.96
971	Notice issued CP 0014	12-01-2008	\$0.00
766	Tax relief credit	12-08-2008	-\$600.00
290	Additional tax assessed 00-00-0000	20084808 12-08-2008	\$0.00
n/a	08254-999-05099-8		
196	Interest charged for late payment	20084808 12-08-2008	\$14.91
971	Notice issued CP 0022	12-08-2008	\$0.00
971	Tax period blocked from automated levy program	02-15-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	03-04-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	03-09-2010	\$0.00
971	Notice issued CP 071C	11-08-2010	\$0.00
276	Penalty for late payment of tax	20104308 11-08-2010	\$1,908.06
971	Tax period blocked from automated levy program	08-22-2011	\$0.00
582	Lien placed on assets due to balance owed	02-17-2012	\$0.00
971	Issued notice of lien filing and right to Collection Due Process hearing	02-21-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00
582	Lien placed on assets due to balance owed	08-02-2019	\$0.00
360	Fees and other expenses for collection	08-26-2019	\$80.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
Response Date: 09-24-2019
Tracking Number: 100471815617

FORM NUMBER: 1040
TAX PERIOD: Dec. 31, 2008

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC
26 MID

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	21,084.46	
ACCRUED INTEREST:	9,769.26	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	1,320.52	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS
(this is not a payoff amount): 32,174.24

** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Single
ADJUSTED GROSS INCOME:	69,539.00
TAXABLE INCOME:	39,620.00
TAX PER RETURN:	17,607.00
SE TAXABLE INCOME TAXPAYER:	74,226.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	11,357.00

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Apr. 15, 2009
PROCESSING DATE	May 11, 2009

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE DATE	AMOUNT
150	Tax return filed	20091708 05-11-2009	\$17,607.00
n/a	09211-102-31121-9		
170	Penalty for not pre-paying tax 09-16-2033	20091708 05-11-2009	\$346.00
276	Penalty for late payment of tax	20091708 05-11-2009	\$88.03
196	Interest charged for late payment	20091708 05-11-2009	\$50.24

971	Notice issued CP 0014	05-11-2009	\$0.00
971	Tax period blocked from automated levy program	02-15-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	03-04-2010	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	03-09-2010	\$0.00
971	Notice issued CP 071C	11-08-2010	\$0.00
276	Penalty for late payment of tax	20104308 11-08-2010	\$2,993.19
971	Tax period blocked from automated levy program	08-22-2011	\$0.00
582	Lien placed on assets due to balance owed	02-17-2012	\$0.00
971	Issued notice of lien filing and right to Collection Due Process hearing	02-21-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00
582	Lien placed on assets due to balance owed	08-02-2019	\$0.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
 Response Date: 09-24-2019
 Tracking Number: 100471826154

FORM NUMBER: 1040
 TAX PERIOD: Dec. 31, 2009

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC
 26 MID

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	21,531.33	
ACCRUED INTEREST:	8,893.24	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	3,862.75	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS (this is not a payoff amount):	34,287.32	
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** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01	
FILING STATUS:	Single	
ADJUSTED GROSS INCOME:	77,103.00	
TAXABLE INCOME:	45,899.00	
TAX PER RETURN:	20,171.00	
SE TAXABLE INCOME TAXPAYER:	81,799.00	
SE TAXABLE INCOME SPOUSE:	0.00	
TOTAL SELF EMPLOYMENT TAX:	12,515.00	

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Apr. 15, 2010
PROCESSING DATE	May 24, 2010

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE	DATE	AMOUNT
150	Tax return filed	20101908	05-24-2010	\$20,171.00
n/a	36221-108-84303-0			
806	W-2 or 1099 withholding		04-15-2010	-\$4.00
766	Credit to your account		04-15-2010	-\$358.00
170	Penalty for not pre-paying tax 09-16-2033	20101908	05-24-2010	\$468.00

276	Penalty for late payment of tax	20101908 05-24-2010	\$198.09
196	Interest charged for late payment	20101908 05-24-2010	\$84.84
971	Notice issued CP 0014	05-24-2010	\$0.00
971	Notice issued CP 071C	11-08-2010	\$0.00
276	Penalty for late payment of tax	20104308 11-08-2010	\$891.40
971	Tax period blocked from automated levy program	08-22-2011	\$0.00
582	Lien placed on assets due to balance owed	02-17-2012	\$0.00
971	Issued notice of lien filing and right to Collection Due Process hearing	02-21-2012	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	09-14-2012	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	09-14-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00
582	Lien placed on assets due to balance owed	08-09-2019	\$0.00
360	Fees and other expenses for collection	09-02-2019	\$80.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
 Response Date: 09-24-2019
 Tracking Number: 100471826154

FORM NUMBER: 1040
 TAX PERIOD: Dec. 31, 2010

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC
 26 MID

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	20,905.94	
ACCRUED INTEREST:	7,576.43	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	4,830.51	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS (this is not a payoff amount):	33,312.88
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** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Single
ADJUSTED GROSS INCOME:	80,409.00
TAXABLE INCOME:	48,235.00
TAX PER RETURN:	21,039.00
SE TAXABLE INCOME TAXPAYER:	79,850.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	12,217.00

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Apr. 15, 2011
PROCESSING DATE	May 30, 2011

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE	DATE	AMOUNT
150	Tax return filed	20112008	05-30-2011	\$21,039.00
n/a	16211-082-01186-1			
806	W-2 or 1099 withholding		04-15-2011	-\$12.00
766	Credit to your account		04-15-2011	-\$298.00
170	Penalty for not pre-paying tax 09-16-2033	20112008	05-30-2011	\$445.00

276	Penalty for late payment of tax	20112008 05-30-2011	\$207.29
196	Interest charged for late payment	20112008 05-30-2011	\$102.47
971	Notice issued CP 0014	05-30-2011	\$0.00
971	Tax period blocked from automated levy program	08-22-2011	\$0.00
767	Reduced or removed credit to your account	04-15-2011	\$6.18
291	Reduced or removed prior tax assessed	11-14-2011	-\$584.00
n/a	45254-699-05740-1		
971	Notice issued CP 0021	11-14-2011	\$0.00
582	Lien placed on assets due to balance owed	02-17-2012	\$0.00
971	Issued notice of lien filing and right to Collection Due Process hearing	02-21-2012	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	09-14-2012	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	09-14-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00

This Product Contains Sensitive Taxpayer Data



This Product Contains Sensitive Taxpayer Data

Account Transcript

Request Date: 09-24-2019
Response Date: 09-24-2019
Tracking Number: 100471826154

FORM NUMBER: 1040
TAX PERIOD: Dec. 31, 2011

TAXPAYER IDENTIFICATION NUMBER:

PHIL VECC
26 MID

--- ANY MINUS SIGN SHOWN BELOW SIGNIFIES A CREDIT AMOUNT ---

ACCOUNT BALANCE:	18,008.76	
ACCRUED INTEREST:	5,726.06	AS OF: Oct. 07, 2019
ACCRUED PENALTY:	4,164.00	AS OF: Oct. 07, 2019

ACCOUNT BALANCE PLUS ACCRUALS
(this is not a payoff amount): 27,898.82

** INFORMATION FROM THE RETURN OR AS ADJUSTED **

EXEMPTIONS:	01
FILING STATUS:	Single
ADJUSTED GROSS INCOME:	75,742.00
TAXABLE INCOME:	42,730.00
TAX PER RETURN:	17,350.00
SE TAXABLE INCOME TAXPAYER:	81,020.00
SE TAXABLE INCOME SPOUSE:	0.00
TOTAL SELF EMPLOYMENT TAX:	10,776.00

RETURN DUE DATE OR RETURN RECEIVED DATE (WHICHEVER IS LATER)	Apr. 15, 2012
PROCESSING DATE	May 28, 2012

TRANSACTIONS

CODE	EXPLANATION OF TRANSACTION	CYCLE DATE	AMOUNT
150	Tax return filed	20122005 05-28-2012	\$17,350.00
n/a	16211-503-16302-2		
170	Penalty for not pre-paying tax 09-16-2033	20122005 05-28-2012	\$344.00
276	Penalty for late payment of tax	20122005 05-28-2012	\$173.50
196	Interest charged for late payment	20122005 05-28-2012	\$61.26

971	Notice issued CP 0014	05-28-2012	\$0.00
971	Collection due process Notice of Intent to Levy -- issued	09-14-2012	\$0.00
971	Collection due process Notice of Intent to Levy -- return receipt signed	09-14-2012	\$0.00
582	Lien placed on assets due to balance owed	09-21-2012	\$0.00
360	Fees and other expenses for collection	10-15-2012	\$80.00
971	Issued notice of lien filing and right to Collection Due Process hearing	09-27-2012	\$0.00
520	Bankruptcy or other legal action filed	03-05-2013	\$0.00
550	IRS can collect until 09-16-2033	10-22-2013	\$0.00

This Product Contains Sensitive Taxpayer Data



SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE

Type of Instrument: FEDERAL TAX LIEN-US DEPT OF JUS Filed: 08/27/2019
Number of Pages: 0 At: 11:29:43 AM
Receipt Number : 19-0161309 Lien Num: LFED00030836
Tax Map # :

EXAMINED AND CHARGED AS FOLLOWS
Lien Fee : \$40.00

Received the Following Fees For Above Instrument

Exempt NO

Fees Paid \$40.00

THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL

JUDITH A. PASCALE
County Clerk, Suffolk County



Re: United States of America v. Phillip Vecchione

Case Number: 2:13-cv-02579-SJF-ARL

FILED
JUDITH R. PASCALE
CLERK OF
SUFFOLK COUNTY
DATE 8/27/2019

Name(s) and Address(es) of Parties against whom Judgment(s) have been obtained	Name(s) and Address(es) of Parties in whose favor Judgment(s) have been obtained
Phillip Vecchione 26 Mida Court West Babylon, New York 11704 (Suffolk County)	United States of America United States Department of Justice Tax Division, Tax FLU OOR P.O. Box 55 Ben Franklin Station Washington, DC 20044 202-307-5839 taxflu.taxcivil@usdoj.gov

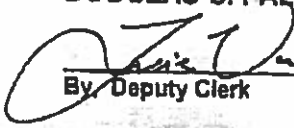
Amount of Judgment(s)	Name(s) and Address(es) of Attorney(s)	Entry Date of Judgment(s)
\$158,206.01 plus statutory additions from September 13, 2013.	United States Department of Justice Tax Division, TAXFLU OOR P.O. Box 310 Ben Franklin Station Washington, DC 20044 202-307-6567 taxflu.taxcivil@usdoj.gov	September 16, 2013

UNITED STATES OF AMERICA,
CLERK'S OFFICE U.S. DISTRICT COURT FOR THE
EASTERN DISTRICT OF NEW YORK

I CERTIFY that the foregoing is a correct Abstract of the Judgment

Dated: APR 16 2019, New York.

DOUGLAS C. PALMER, Clerk of Court

By:  Deputy Clerk

100098

Form 668 (Y)(c)

(Rev. October 2000)

1009

Department of the Treasury - Internal Revenue Service

Notice of Federal Tax Lien

Area:

SMALL BUSINESS/SELF EMPLOYED AREA #2

Lien Unit Phone: (212) 719-8239

Serial Number

133428003

For Optional Use by Recording Office

As provided by section 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer PHILLIP M VECCHIONE

Residence

26 MIDA COURT
WEST BABYLON, NY 11704

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of the lien is refiled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a).

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2002	101-40-4408	05/19/2003	06/18/2013	9735.65

Place of Filing

Suffolk County Clerk
Suffolk County
Riverhead, NY 11901

Total

\$

9735.65

This notice was prepared and signed at

MANHATTAN, NY

the 10th day of September, 2003.



Signature

Title

REVENUE OFFICER
(631) 851-4957

22-03-1521

for GEORGE RASMUSSEN

(NOTE: Certificate of officer authorized by law to take acknowledgment is not essential to the validity of Notice of Federal Tax Lien
Rev. Rul. 71-466, 1971-2 C.B. 409)

Part 1 - kept by Recording Office

Form 668(Y)(c) (Rev. 10-00)
CAT. NO 60028X

FILED
03 SEP 24 PM 2:43
CLERK OF
SUFFOLK COUNTY

**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument: **FEDERAL TAX LIEN - IRS PAYMENT** Filed: **02/21/2012**
Number of Pages: **0** At: **02:30:27 PM**
Receipt Number : **12-0019985** Lien Num: **LFED00014718**
Tax Map # :

EXAMINED AND CHARGED AS FOLLOWS
Lien Fee : **\$40.00**

Received the Following Fees For Above Instrument

Exempt **NO**
Fees Paid **\$40.00**

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form 668 (Y)(c) (Rev. February 2004)	11874 Department of the Treasury - Internal Revenue Service Notice of Federal Tax Lien
--	--

Area: SMALL BUSINESS/SELF EMPLOYED AREA #1 Lien Unit Phone: (800) 829-3903	Serial Number 848547012	For Optional Use by Recording Office
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As provided by section 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer PHILLIP M VECCHIONE

Residence 26 MIDA CT
WEST BABYLON, NY 11704-5042

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of the lien is refilled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a).

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2005	XXX-XX-4408	02/04/2008	03/06/2018	6299.50
1040	12/31/2006	XXX-XX-4408	06/02/2008	07/02/2018	9885.92
1040	12/31/2007	XXX-XX-4408	12/01/2008	12/31/2018	14308.72
1040	12/31/2008	XXX-XX-4408	05/11/2009	06/10/2019	21084.46
1040	12/31/2009	XXX-XX-4408	05/24/2010	06/23/2020	21451.33
1040	12/31/2010	XXX-XX-4408	05/30/2011	06/29/2021	20905.94

Place of Filing Suffolk County Clerk Suffolk County Riverhead, NY 11901	Total \$ 93935.87
---	--------------------------

This notice was prepared and signed at MANHATTAN, NY, on this, the 09th day of February, 2012.

Signature for FRED BANKS	 Title ACS SBSE (800) 829-3903	21-00-0008
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(NOTE: Certificate of officer authorized by law to take acknowledgment is not essential to the validity of Notice of Federal Tax Lien
Rev. Rul. 71-468, 1971 - 2 C.B. 408)

Part 1 - Kept By Recording Office

Form 668(Y)(c) (Rev. 2-2004)
CAT. NO 60025X



**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument: **FEDERAL TAX LIEN - IRS PAYMENT** Filed: **09/27/2012**
Number of Pages: **0** At: **02:39:41 PM**
Receipt Number : **12-0111877** Lien Num: **LFED00016318**
Tax Map # :

EXAMINED AND CHARGED AS FOLLOWS

Lien Fee : **\$40.00**

Received the Following Fees For Above Instrument

Exempt	NO
Fees Paid	\$40.00

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form 668 (Y)(c)
(Rev. February 2004)

11874

Department of the Treasury - Internal Revenue Service

Notice of Federal Tax Lien

Area:

SMALL BUSINESS/SELF EMPLOYED AREA #1
Lien Unit Phone: (800) 913-6050

Serial Number

894433712

For Optional Use by Recording Office

As provided by section 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer PHILLIP M VECCHIONE

Residence

26 MIDA CT
WEST BABYLON, NY 11704-5042

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of the lien is refilled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a).

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2011	██████████-4408	05/28/2012	06/27/2022	17928.76

Place of Filing

Suffolk County Clerk
Suffolk County
Riverhead, NY 11901

Total \$ 17928.76

This notice was prepared and signed at MANHATTAN, NY, on this,
the 18th day of September, 2012.

Signature

for KATHLEEN A BAIATA

Title

REVENUE OFFICER
(631) 851-4713

21-06-1640

(NOTE: Certificate of officer authorized by law to take acknowledgment is not essential to the validity of Notice of Federal Tax Lien
Rev. Rul. 71-486, 1971 - 2 C.B. 409)

Part I - kept By Recording Office

Form 668(Y)(c) (Rev. 2-2004)
CAT. NO 60025X

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument: **FEDERAL TAX LIEN - IRS PAYMENT** Filed: **02/26/2013**
Number of Pages: **0** At: **09:21:35 AM**
Receipt Number : **13-0021906** Lien Num: **LFED00016620**
Tax Map # :

EXAMINED AND CHARGED AS FOLLOWS
Lien Fee : **\$40.00**

Received the Following Fees For Above Instrument

Exempt	NO
Fees Paid	\$40.00

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form 668-F (Rev. February 2004)	11874 REFILE Department of the Treasury - Internal Revenue Service	REFILE
Notice of Federal Tax Lien		
Recorded: 09/24/2003 14:43 100000		

Area:
SMALL BUSINESS/SELF EMPLOYED AREA #1
Lien Unit Phone: (800) 913-6050

Serial Number

133428003

For Optional Use by Recording Office

As provided by section 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer PHILLIP M VECCHIONE

Residence 26 MIDA COURT
WEST BABYLON, NY 11704

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of the lien is refilled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a). **NOT APPLICABLE TO A REFILED NOTICE *****

FILED
JUDITH A. PASCALE
CLERK OF
SUFFOLK COUNTY
DATE 2/26/2013
SER # LFED00016620

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2002	4408	05/19/2003	N/A	12035.17
Serial ID: 92305713 NOTICE OF FEDERAL TAX LIEN REFILED New TP Name: Notice Filed At: Suffolk New Address: New TIN: Signature: for ANDREW BARONE (718) 488-2715 DATE: 02/14/2013 Title: INSOLVENCY SPEC					

Place of Filing

Suffolk County Clerk
Suffolk County
Riverhead, NY 11901

Total \$ 12035.17

This notice was prepared and signed at MANHATTAN, NY, on this,
the 10th day of September, 2003.

Signature

for GEORGE RASMUSSEN

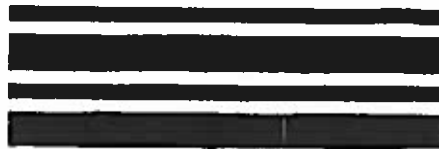
Title

REVENUE OFFICER
22-03-1521

(NOTE: Certificate of officer authorized by law to take acknowledgment is not essential to the validity of Notice of Federal Tax Lien
Rev. Rul. 71-486, 1971 - 2 C.B. 409)

Part 1 - Kept By Recording Office

Form 668-F (Rev. 2-2004)
CAT. NO 60025X



**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument:	FEDERAL TAX LIEN - IRS PAYMENT	Filed:	05/31/2017
Number of Pages:	0	At:	09:40:24 AM
Receipt Number :	17-0090740	Lien Num:	LFED00025904
Tax Map #	:		

EXAMINED AND CHARGED AS FOLLOWS

Lien Fee : \$40.00

Received the Following Fees For Above Instrument

Exempt	NO
Fees Paid	\$40.00

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form 668-F (Rev. February 2004)	14742 REFILE	Department of the Treasury - Internal Revenue Service	REFILE
Notice of Federal Tax Lien			
Recorded: 02/21/2012 00:00 00014718			

Area: SMALL BUSINESS/SELF EMPLOYED AREA #1 Lien Unit Phone: (800) 913-6050	Serial Number 848547012	For Optional Use by Recording Office
--	--------------------------------	--------------------------------------

As provided by section 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer PHILLIP M VECCHIONE

Residence 26 MIDA CT
WEST BABYLON, NY 11704-5042

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of the lien is refiled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a). **NOT APPLICABLE TO A REFILED NOTICE *****

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2005	XXX [REDACTED]	02/04/2008	03/06/2028	8876.65
Serial ID: 26165417 New TP Name: New Address:  Signature: for MS C.J. FIELDS (212) 436-1049 NOTICE OF FEDERAL TAX LIEN REFILING Notice Filed At: Suffolk New TIN: DATE: 05/10/2017 Title: ADVISOR					

Place of Filing Suffolk County Clerk Suffolk County Riverhead, NY 11901	Total \$ 8876.65
--	------------------

This notice was prepared and signed at MANHATTAN, NY, on this,

the 09th day of February, 2012.

Signature for FRED BANKS	Title ACS SBSE 21-00-0008
-----------------------------	---------------------------------

(NOTE: Certificate of officer authorized by law to take acknowledgment is not essential to the validity of Notice of Federal Tax Lien
Rev. Rul. 71-466, 1971 - 2 C.B. 409)

Part 1 - Kept By Recording Office

Form 668-F (Rev. 2-2004)
CAT. NO 60025X

**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument: **FEDERAL TAX LIEN - IRS PAYMENT** Filed: **08/30/2017**
Number of Pages: **0** At: **09:29:40 AM**
Receipt Number : **17-0150102** Lien Num: **LFED00026432**
Tax Map # :

EXAMINED AND CHARGED AS FOLLOWS
Lien Fee : **\$40.00**

Received the Following Fees For Above Instrument

Exempt	NO
Fees Paid	\$40.00

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form 668-F

(Rev. February 2004)

3351

REFILE

Department of the Treasury - Internal Revenue Service

REFILE

Notice of Federal Tax Lien

Recorded: 02/21/2012 00:00 00014718

Area:

SMALL BUSINESS/SELF EMPLOYED AREA #1
Lien Unit Phone: (800) 913-6050

Serial Number

848547012

For Optional Use by Recording Office

As provided by section 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer PHILLIP M VECCHIONE

Residence

26 MIDA CT
WEST BABYLON, NY 11704-5042

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of the lien is refiled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a). **NOT APPLICABLE TO A REFILED NOTICE *****

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2006	XXX [REDACTED]	06/02/2008	07/02/2028	13621.42

Serial ID: 274510717 NOTICE OF FEDERAL TAX LIEN REFILING

New TP Name: Notice Filed At: Suffolk

New Address: New TIN:

Joan Flach
Signature: for MS C.J. FIELDS
(212) 436-1049

DATE: 08/14/2017
Title: ADVISOR

Place of Filing

Suffolk County Clerk
Suffolk County
Riverhead, NY 11901

Total \$ 13621.42

This notice was prepared and signed at MANHATTAN, NY, on this,
the 09th day of February, 2012.

Signature

for FRED BANKS

Title

ACS SBSE

21-00-0008

(NOTE: Certificate of officer authorized by law to take acknowledgment is not essential to the validity of Notice of Federal Tax lien
Rev. Rul. 71-486, 1971-2 C.B. 409)

Part 1 - Kept By Recording Office

Form 668-F (Rev. 2-2004)
CAT. NO 60025X



**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument:	FEDERAL TAX LIEN - IRS PAYMENT	Filed:	07/30/2019
Number of Pages:	0	At:	02:56:41 PM
Receipt Number :	19-0141235	Lien Num:	LFED00030484
Tax Map #	:		

EXAMINED AND CHARGED AS FOLLOWS

Lien Fee : \$40.00

Received the Following Fees For Above Instrument

Exempt	NO
Fees Paid	\$40.00

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form **12474**
(March 2016)

Department of the Treasury - Internal Revenue Service

Revocation of Release of Federal Tax Lien

Area

Small Business / Self Employed - Area: 1

Serial Number

848547012

For Optional Use by Recording Office

I certify that we mistakenly released the federal tax lien against the taxpayer named below. I declare that the release of the federal tax lien is revoked, and the lien is reinstated as provided under the Internal Revenue Code Section 6325(f)(2).

Name of Taxpayer

PHILLIP M VECCHIONE

Address

26 MIDA CT
WEST BABYLON, NY 11704-5042268

RECORDING OFFICE INFORMATION
LIEN RECORDED: 2/21/2012
RECORDING NO. 00014718

FILED
JUDITH A. PPSOLE
CLERK OF
SUFFOLK COUNTY
DATE: 7/30/2019
SEQ # LFED00030484

LFED00030484 ✓

Kind of Tax (a)	Tax Period Ended (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2007	XXX-XX- 	12/01/2008	12/31/2018	\$14,308.72
1040	12/31/2008	XXX-XX- 	05/11/2009	06/10/2019	\$21,084.46
Place of Filing SUFFOLK COUNTY CLERK SUFFOLK COUNTY RIVERHEAD, NY 11901					Total \$35,393.18

This notice was prepared and signed at MANHATTAN, on this, the 30th day of July, 2019.

Signature

Me C.J. Fields

Title

C.J. FIELDS, Employee # - 1000245329

ADVISOR, Phone # - (718)536-3586

(NOTE: Certificate of officer authorized by law to take acknowledgements is not essential to the validity of Revocation of Certification of Release of Federal Tax Lien Rev. Rul. 71-466, 1971-2 C.B. 409)

Part 1 - Recording Office

Form 12474 (Rev. 03-2016)

Reason for Revoking the Release of Federal Tax Lien

- ☐ Certificate of Release of Federal Tax Lien issued in in error
- ☐ Certificate of Release of Federal Tax Lien issued in in error in another jurisdiction
- ☒ Notice of Federal Tax Lien not refiled timely
- ☐ Notice of Federal Tax Lien not refiled timely in another jurisdiction
- ☐ Failure to comply with collateral agreement in connection with a compromise
- ☐ Liability not discharged through litigation



**SUFFOLK COUNTY CLERK
RECORDS OFFICE
RECORDING PAGE**

Type of Instrument: **FEDERAL TAX LIEN - IRS PAYMENT** Filed: **07/31/2019**
Number of Pages: **0** At: **09:15:17 AM**
Receipt Number : **19-0141648** Lien Num: **LFED00030485**
Tax Map # :

EXAMINED AND CHARGED AS FOLLOWS

Lien Fee : **\$40.00**

Received the Following Fees For Above Instrument

Exempt	NO
Fees Paid	\$40.00

**THIS PAGE IS A PART OF THE INSTRUMENT
THIS IS NOT A BILL**

**JUDITH A. PASCALE
County Clerk, Suffolk County**

Form 668(Y)
(Rev. February 2004)**Department of the Treasury - Internal Revenue Service**
Notice of Federal Tax Lien

Area:

SMALL BUSINESS/SELF EMPLOYED #1

Serial Number

372786819

For Optional Use by Recording Office

As provided by sections 6321, 6322, and 6323 of the Internal Revenue Code, we are giving a notice that taxes (including interest and penalties) have been assessed against the following-named taxpayer. We have made a demand for payment of this liability, but it remains unpaid. Therefore, there is a lien in favor of the United States on all property and rights to property belonging to this taxpayer for the amount of these taxes, and additional penalties, interest, and costs that may accrue.

Name of Taxpayer

PHILLIP M VECCHIONE

Residence

26 MIDA CT
WEST BABYLON, NY 11704-5042288

FILED
JUDITH A. PASCALE
CLERK OF
SUFFOLK COUNTY
DATE 7/31/2019
SEQ # LFED00030485

IMPORTANT RELEASE INFORMATION: For each assessment listed below, unless notice of lien is refiled by the date given in column (e), this notice shall, on the day following such date, operate as a certificate of release as defined in IRC 6325(a).

Kind of Tax (a)	Tax Period Ending (b)	Identifying Number (c)	Date of Assessment (d)	Last Day for Refiling (e)	Unpaid Balance of Assessment (f)
1040	12/31/2007	XXX-XX- 	12/01/2008	12/31/2028	\$21,129.09
1040	12/31/2008	XXX-XX- 	05/11/2009	06/10/2029	\$31,884.01

Place of Filing
SUFFOLK COUNTY CLERK
SUFFOLK COUNTY
RIVERHEAD, NY 11901

Total

\$53,013.10

This notice was prepared and signed at MANHATTAN, on this,
the 30th day of July 2019.

Signature

C.J. FIELDS,

Employee # 2197-6719

Title

ADVISOR

Phone # (718)536-3586

(NOTE: Certificate of officer authorized by law to take acknowledgements is not essential to the validity of Notice of Federal Tax Lien Rev. Rul. 71-466, 1971-2 C.B. 409)

Part 1 - Recording Office

Form 668(Y)(c) (Rev. 2-2004) CAT. NO 60025X

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

UNITED STATES OF AMERICA

(b) County of Residence of First Listed Plaintiff

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Alan Shapiro, Trial Attorney, U.S. Department of Justice, Tax Division,
P.O. Box 55, Washington, D.C. 20044 (202) 307-5839

DEFENDANTS

PHILLIP VECCHIONE, DEANNA HARDING, CAPITAL ONE BANK
(USA) NA, STATE OF NEW YORK, AND COUNTY OF SUFFOLK,
NEW YORK

County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF
THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☐ 2 U.S. Government Defendant
- ☐ 3 Federal Question (U.S. Government Not a Party)
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|---------------------------------------|----------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

Click here for: [Nature of Suit Code Descriptions](#)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☒ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit (15 USC 1681 or 1692) ☐ 485 Telephone Consumer Protection Act ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

26 U.S.C. 57402(a) and 57403(c)

Brief description of cause:

Suit to enforce Federal tax liens on residential real property.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☐ Yes ☒ No

VIII. RELATED CASE(S) IF ANY

U.S. v. Phillip Vecchione
(See instructions):

JUDGE Sandra J. Feuerstein

DOCKET NUMBER 2:13-cv-02579

DATE

12/10/19

SIGNATURE OF ATTORNEY OF RECORD

Alan Shapiro

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44**Authority For Civil Cover Sheet**

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

- I.(a) Plaintiffs-Defendants.** Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.
- (b) County of Residence.** For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)
- (c) Attorneys.** Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".
- II. Jurisdiction.** The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
 United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
 United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
 Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
 Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below; **NOTE: federal question actions take precedence over diversity cases.**)
- III. Residence (citizenship) of Principal Parties.** This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.
- IV. Nature of Suit.** Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: [Nature of Suit Code Descriptions](#).
- V. Origin.** Place an "X" in one of the seven boxes.
 Original Proceedings. (1) Cases which originate in the United States district courts.
 Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
 Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
 Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
 Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
 Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
 Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.
- VI. Cause of Action.** Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service
- VII. Requested in Complaint.** Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
 Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
 Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.
- VIII. Related Cases.** This section of the JS 44 is used to reference related pending cases, if any. If there are related pending cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

UNITED STATES OF AMERICA,

Plaintiff(s)

v.

PHILLIP VECCHIONE, DEANNA HARDING,
CAPITAL ONE BANK (USA) NA, STATE OF NEW
YORK, AND COUNTY OF SUFFOLK, NEW YORK,

Defendant(s)

Civil Action No. 19-7059

SUMMONS IN A CIVIL ACTION

To: (*Defendant's name and address*) Phillip Vecchione
5 Girard Avenue
Bay Shore, New York 11706

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Alan Shapiro, Trial Attorney
U.S. Department of Justice, Tax Division
P.O. Box 55
Washington, D.C. 20044

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

UNITED STATES OF AMERICA,

Plaintiff(s)

v.

PHILLIP VECCHIONE, DEANNA HARDING,
CAPITAL ONE BANK (USA) NA, STATE OF NEW
YORK, AND COUNTY OF SUFFOLK, NEW YORK,

Defendant(s)

Civil Action No.

19-7059

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Deanna Harding
26 Mida Court
West Babylon, New York 11729

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Alan Shapiro, Trial Attorney
U.S. Department of Justice, Tax Division
P.O. Box 55
Washington, D.C. 20044

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)* _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

UNITED STATES OF AMERICA,

Plaintiff(s)

v.

PHILLIP VECCHIONE, DEANNA HARDING,
CAPITAL ONE BANK (USA) NA, STATE OF NEW
YORK, AND COUNTY OF SUFFOLK, NEW YORK,

Defendant(s)

Civil Action No. 19 - 7059

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Capital One Bank (USA) NA
1680 Capital One Drive
McLean, Virginia 22102

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Alan Shapiro, Trial Attorney
U.S. Department of Justice, Tax Division
P.O. Box 55
Washington, D.C. 20044

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

UNITED STATES OF AMERICA,

Plaintiff(s)

v.

PHILLIP VECCHIONE, DEANNA HARDING,
CAPITAL ONE BANK (USA) NA, STATE OF NEW
YORK, AND COUNTY OF SUFFOLK, NEW YORK,

Defendant(s)

Civil Action No. 19-7059

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* State of New York
New York State Office of the Attorney General
Justice Building, 2nd Floor
Empire State Plaza
Albany, New York 12224

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Alan Shapiro, Trial Attorney
U.S. Department of Justice, Tax Division
P.O. Box 55
Washington, D.C. 20044

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____.

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_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)* _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

UNITED STATES OF AMERICA,

Plaintiff(s)

v.

PHILLIP VECCHIONE, DEANNA HARDING,
CAPITAL ONE BANK (USA) NA, STATE OF NEW
YORK, AND COUNTY OF SUFFOLK, NEW YORK,

Defendant(s)

Civil Action No.

19-7059

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* County of Suffolk, New York
Suffolk County Attorney
H. Lee Denmsion Building
100 Veterans Memorial Highway, 6th Floor
Hauppauge, New York 11788

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Alan Shapiro, Trial Attorney
U.S. Department of Justice, Tax Division
P.O. Box 55
Washington, D.C. 20044

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

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was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: